

Warsaw, October 28, 2022

Decision

DKE.561.21.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2021, item 735, as amended) in connection with Article 7 § 1 and 2 and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws 2019, item 1781) in connection with Article 57 § 1 lit. a) and h), Article 31, and Article 58 § 1 lit. a) and lit. e) as well as Article 58 § 2 lit. b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on T. Sp. z o.o. based in W. at ul. (...), the President of the Personal Data Protection Office issues a reprimand to T. Sp. z o.o. based in W. at ul. (...), for violating the provisions of Article 31 and Article 58 § 1 lit. a) and lit. e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), hereinafter referred to as the "Regulation 2016/679", consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide access to personal data and information in the proceedings with reference number DS.523.4373.2020.

Justification

Factual Background

A complaint was submitted to the Personal Data Protection Office by Ms. B. A. residing in J. (hereinafter referred to as the "Complainant"), regarding irregularities in the processing of her personal data by T. Sp. z o.o. based in W. at ul. (...) (hereinafter referred to as the "Company"), consisting of processing her personal data without a legal basis and failing to fulfill the information obligation towards her resulting from Article 15 of Regulation 2016/679.

The President of the Personal Data Protection Office (hereinafter "the President of UODO") in the course of the initiated administrative proceedings aimed at examining the submitted complaint (under reference number DS.523.4373.2020) in a letter dated October 28, 2021, requested the Company to respond to the content of the complaint and to provide explanations:

- 1) whether, and if so, on what legal basis, for what purpose, and to what extent the Company processes or has processed the Complainant's personal data;
- 2) whether the Complainant requested access to her data from the Company under Article 15 § 1 of the GDPR, and if so, what was the Company's position regarding this;
- 3) whether the Complainant requested the Company to delete her personal data, and if so, when, to what extent, and what was the Company's position;
- 4) whether the Company received a request from the Complainant for information regarding the processing of her personal data, and if so, when (on what date), in what manner (in what form), and to what extent the Company responded to this request (please send a copy of the correspondence in this regard).

The letter dated October 28, 2021, was delivered to the Company on November 4, 2021, as confirmed by the "Confirmation of Postal Shipment." In this letter, the Company was informed of the obligation to notify the President of UODO of any change of its address and that in the event of neglecting this obligation, the delivery of the letter to the previous address would have legal effect in accordance with Article 41 § 1 and 2 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws 2022, item 2000), hereinafter referred to as "K.p.a."

In response, the Company in a letter dated November 4, 2021, explained that it has been operating since December 1, 2020, whereas the event referred to by the Complainant occurred on June 6, 2020, when the medical facility I. was operated by the Company P. Sp. z o.o. (currently in bankruptcy), with which the Company has no connection either personally or financially.

In connection with the receipt of the above information, the President of UODO, in a letter dated December 1, 2021, requested the bankruptcy trustee of P. Sp. z o.o. in bankruptcy to provide information regarding the processing of the Complainant's data. In response, the trustee, in a letter dated January 10, 2022, informed the President of UODO that he found no confirmation that P. Sp. z o.o. had ever processed the Complainant's personal data and that the Company, as the entity operating the medical facility "I," should be in possession of this data.

In light of the above, the President of UODO, in letters dated March 2, 2022, and April 29, 2022, again summoned the Company – to the previous address indicated in the case files, i.e., ul. (...) – to provide answers to...

questions raised in the letter dated October 28, 2021.

The letters dated March 2, 2022, and April 29, 2022, were not collected by the Company in due time. Both letters, after being notified twice, were returned to the Office with the annotation "Return not collected in due time"; however, based on Article 44 § 4 of the Administrative Procedure Code (K.p.a.) in conjunction with Article 45 of the K.p.a., they were deemed delivered on March 21, 2022 (letter dated March 2, 2022) and May 17, 2022 (letter dated April 29, 2022).

In the letter dated April 29, 2022, the Company was informed that a lack of a comprehensive response to the request could result, due to a lack of cooperation with the President of the Personal Data Protection Office (UODO) in the performance of his duties and failure to provide access to personal data and information necessary for the President of UODO to fulfill his tasks, in the imposition on the Company – in accordance with Article 83(5)(e) of the General Data Protection Regulation (GDPR) – of an administrative fine of up to EUR 20,000,000, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount being applicable. Despite the properly made requests by the President of UODO, the Company did not provide him with the information he requested.

Due to the lack of response to the above requests, the President of UODO initiated this administrative proceeding regarding the imposition of an administrative fine on the Company for violating Articles 31 and 58(1)(a) and (e) of Regulation 2016/679 in connection with the lack of cooperation with the President of UODO in the performance of his duties and failure to provide access to personal data and information necessary for the President of UODO to fulfill his tasks.

In the course of the initiated administrative proceedings conducted under reference number DKE.561.21.2022, based on information available in the register of entrepreneurs of the National Court Register (Krajowy Rejestr Sądowy, KRS), it was established that on February 1, 2022, the Company changed its registered office address from ul. (...) to ul. (...) and did not inform the President of UODO about this.

In connection with obtaining the aforementioned information, the letter dated August 3, 2022, regarding the initiation of administrative proceedings concerning the imposition of an administrative fine and the collection of evidence in the matter was sent to the new address of the Company, i.e., (...). In this letter, it was indicated that if the Company provides comprehensive explanations within the deadline, which the President of UODO requested in the letters dated March 2, 2022, and April 29, 2022, this circumstance may mitigate the administrative fine imposed in these proceedings or may lead to the decision to refrain from imposing it. The Company received the aforementioned letter on August 24, 2022.

In a letter dated September 19, 2022, the Company responded to the questions directed to it in the case with reference number DS.523.7928.2021 and requested to refrain from imposing an administrative fine, indicating that the lack of response to the requests was due to the correspondence being sent to the old registered office address of the Company, i.e., ul. (...), after the new address of the Company was already disclosed in the KRS, i.e., ul. (...). Additionally, justifying its request, the

Company indicated that after receiving correspondence at its new address regarding this matter, it responded to the President of UODO's requests. The Company emphasized that the lack of correspondence and the earlier failure to provide information did not result from bad faith or avoidance of cooperation with the President of UODO. In the aforementioned letter, the Company also informed that it still does not have an approved financial statement for the first financial year, i.e., for 2021, and therefore requested an extension of the deadline for submitting the aforementioned document or – due to fulfilling the obligation of the President of UODO – exemption from this obligation. It added that this is the first financial statement of the Company, and therefore – at this moment – it does not have any other resulting documentation.

After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

Legal Justification

According to Article 57(1)(a) of Regulation 2016/679, the President of UODO – as the supervisory authority within the meaning of Article 51 of Regulation 2016/679 – monitors and enforces the application of this regulation within its territory. Within its competencies, the President of UODO considers, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f)).

To enable the realization of the tasks defined in this way, the President of UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 concerning the proceedings conducted, including the power to order the controller and the processor to provide all information necessary for the performance of his tasks (Article 58(1)(a)) and the power to obtain from the controller and the processor access to all personal data and all information necessary for the performance of his tasks (Article 58(1)(e)). Furthermore, the President of UODO has a number of corrective powers specified in Article 58(2), including the issuance of warnings to the controller or processor in the event of a violation of the provisions of Regulation 2016/679.

A violation of the provisions of Regulation 2016/679 consisting of the failure of the controller or processor to provide access to the data and information mentioned above, resulting in a violation of the rights of the authority specified in Article 58.

Art. 1 (including the right to obtain data and information necessary for the performance of its tasks) is subject to an administrative monetary penalty of up to EUR 20,000,000, and in the case of an enterprise, up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount being applicable. It should also be noted that the controller and the processor are obliged to cooperate with the supervisory authority in the performance of its tasks, as stated in Article 31 of Regulation 2016/679. The President of the UODO, acting under Article 58(2)(b) of Regulation 2016/679, may consider it justified to issue a warning to the controller or the processor regarding the identified violation of the provisions of Articles 31 and 58(1)(a) and (e).

Referring the above provisions of Regulation 2016/679 to the established facts in this case, as described in the introductory justification of this decision, it should be stated that the Company – as a party to the proceedings conducted by the President of the UODO under case reference DS.523.4373.2020 – undoubtedly violated the obligation to cooperate with the President of the UODO and the obligation to ensure the President of the UODO access to personal data and information necessary for the performance of his tasks – in this case, for the substantive resolution of the matter.

The President of the UODO summoned the Company three times to provide explanations in the proceedings conducted under case reference DS.523.4373.2020. The first of these summons was delivered to the Company on November 4, 2021, while the second and third were twice notified and ultimately returned to the sender on March 21, 2022 (letter dated March 2, 2022) and May 17, 2022 (letter dated April 29, 2022) with the annotation: "return not collected in time." The Company responded to the first summons from the President of the UODO, but did not respond to the subsequent summons.

In the first summons, the Company was informed of the obligation to notify the public administration

authority of any change of its address and that in the event of neglecting this obligation, the delivery of a letter to the previous address has legal effect (Article 41 § 1 and 2 of the Administrative Procedure Code). The Company received the above summons on October 28, 2021. Therefore, the Company was aware of the necessity to inform the President of the UODO of any change of address and of the potential consequences of failing to provide him with this information. As of February 1, 2022, the Company changed its registered office address from: ul. (...), to: (...) and did not inform the President of the UODO of this, which it was obliged to do under Article 41 § 1 and 2 of the Administrative Procedure Code.

Due to the fact that the Company did not inform the President of the UODO of the change of its address in the ongoing proceedings conducted under case reference DS.523.4373.2020, further summons to provide explanations sent to the previous address of the Company indicated in the case files, i.e., (...), had legal effect in accordance with Article 41 § 1 and 2 of the Administrative Procedure Code and were deemed delivered based on Article 44 § 4 of the Administrative Procedure Code in connection with Article 45 of the Administrative Procedure Code, which provides for the so-called fiction of delivery. The Company, being aware of the ongoing proceedings conducted under case reference DS.523.4373.2020, failed to fulfill the obligation to notify the President of the UODO of the change of its registered office address, thereby – in the opinion of the President of the UODO – violating Article 31 of Regulation 679/16, i.e., the obligation to cooperate with the authority. The Company was aware of the burdensome risk associated with not informing the President of the UODO of the change of its address in the form of the President of the UODO considering further letters in this matter as effectively delivered in accordance with the provisions of Article 41 § 1 and 2 of the Administrative Procedure Code in connection with Article 44 § 4 of the Administrative Procedure Code and Article 45 of the Administrative Procedure Code.

The lack of cooperation and the resulting inability to obtain access to the information, which the President of the UODO requested from the Company in letters dated March 2, 2022, and April 29, 2022, hindered a thorough examination of the matter under case reference DS.523.4373.2020 and resulted in the prolongation of the proceedings, which in turn contradicts the fundamental principles governing administrative proceedings as defined in Article 12(1) of the Administrative Procedure Code – the principles of thoroughness and speed of proceedings. The aforementioned omissions of the Company necessitated the initiation of these proceedings regarding the imposition of an administrative monetary penalty on the Company.

In response to the information about the initiation of these proceedings, the Company resumed cooperation with the President of the UODO by sending explanations in the proceedings under case reference DS.523.1878.2022, which enabled the President of the UODO to continue the proceedings in this matter. At the same time, in its explanations, the Company requested to refrain from imposing an administrative monetary penalty. Justifying its request, it indicated that the lack of response to the summons for explanations dated March 2, 2022, and April 29, 2022, did not result from bad faith or avoidance of cooperation with the President of the UODO in the proceedings conducted under case reference DS.523.1878.2022, but was caused by the correspondence being sent by the President of the UODO to the old address of the Company, i.e., ul. (...), after the new address had already been disclosed in the KRS, i.e., ul. (...). Additionally, justifying its request, the Company indicated that after receiving correspondence in this matter at its new address, it responded to the summons from the President of the UODO.

As mentioned above, there is no doubt that the Company, through its behavior, committed a violation of the provisions of Regulation 2016/679. The justification presented by the Company for the lack of response to the summons from the President of the UODO does not relieve it of responsibility for the identified omission. However, the President of the UODO accepted the Company's explanations that the lack of response to the summons directed to it for explanations did not result from its bad faith, nor was it intended to deliberately obstruct the proceedings. The Company was not aware of the further correspondence directed to it in the proceedings.

o reference number DS.523.1878.2022, due to the change of its registered office address, and for this

reason, it did not continue cooperation with the President of the UODO.

In the factual state of the matter, apart from the lack of response to requests for explanations – which lack was supplemented by the Company as a result of the initiation of these proceedings – no other circumstances indicating a lack of willingness to cooperate with the President of the UODO were found. In the opinion of the President of the UODO, the aforementioned violation was unintentional. The circumstances of the case, particularly the subsequent attitude of the Company, allow for the conclusion that its initial stance did not stem from bad faith, nor was it aimed at deliberately obstructing the proceedings. After receiving correspondence at its address, the Company responded to the requests of the President of the UODO. The subsequent, active attitude of the Company, particularly providing explanations in the proceedings conducted under reference number DS.523.1878.2022, indicates a willingness to continue cooperating with the President of the UODO. In the opinion of the supervisory authority, the mere initiation of proceedings regarding the imposition of an administrative monetary penalty and the real prospect of imposing a financial penalty became a clear signal for the Company that further evasion of obligations imposed by the provisions of Regulation 2016/679 would inevitably lead to the application of the most severe sanctions provided for by those provisions. Nevertheless, in order to avoid similar situations in the future, the President of the UODO indicates that the Company should promptly inform about any obstacles preventing it from timely fulfilling its obligations towards the data protection authority as soon as they arise.

Having the above in mind, acting on the basis of Article 58(2)(b) of Regulation 2016/679, according to which each supervisory authority has the right to issue a reprimand to the controller or processor in the context of ongoing proceedings, the President of the UODO deemed it justified to issue a reprimand to the Company regarding the established violation of the provisions of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, assuming that in light of the criteria specified in Article 83(2) of Regulation 2016/679, it would be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Company will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles specified in Article 83(2) of Regulation 2016/679.

In this factual and legal state, the President of the UODO decided as stated in the operative part of this decision.

Instruction

The decision is final. The party has the right to file a complaint against the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the complaint is 200 PLN. In the proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

Print article

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